

Employment Equity Act 55 of 1998

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Purpose

To achieve equity in the workplace by—

- (a) promoting equal opportunity and fair treatment through elimination of unfair discrimination; and
- (b) implementing affirmative action measures to redress the disadvantages in employment experienced by designated groups (black people, women and people with disabilities).

Unfair discrimination (Chapter II)

No person may unfairly discriminate, directly or indirectly, against an employee in any employment policy or practice on one or more grounds, including race, gender, sex, pregnancy, marital status, family responsibility, ethnic or social origin, colour, sexual orientation, age, disability, religion, HIV status, conscience, belief, political opinion, culture, language, birth or on any other arbitrary ground.

It is not unfair discrimination to—

- take affirmative action measures consistent with the purpose of the Act; or
- distinguish, exclude or prefer any person on the basis of an inherent requirement of a job.

Medical testing is prohibited unless legislation permits or it is justifiable in the light of medical facts, employment conditions, social policy, the fair distribution of employee benefits or the inherent requirements of a job. HIV testing requires Labour Court authorisation.

Affirmative action (Chapter III)

Designated employers must prepare and implement an employment equity plan, consult with employees, conduct analysis of employment policies and workforce profile, and report to the Director-General.

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —